

Court No. - 29

Case :- WRIT - C No. - 45723 of 2009

Petitioner :- Kallu Kushwaha

Respondent :- State Of U.P. & Others

Petitioner Counsel :- B.R.J. Pandey

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Ran Vijai Singh, J.

Put up on 7th September, 2009 to enable Shri Rajesh Tripathi, learned counsel appearing for the respondents to seek instructions in the matter.

Order Date :- 31.8.2009

SP/

Court No. - 29

Case :- WRIT - C No. - 45723 of 2009

Petitioner :- Kallu Kushwaha

Respondent :- State Of U.P. & Others

Petitioner Counsel :- B.R.J. Pandey

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Ran Vijai Singh, J.

As prayed, put up tomorrow i.e. 9.9.2009.

Order Date :- 8.9.2009

PKB

Court No. - 29

Case :- WRIT - C No. - 45723 of 2009

Petitioner :- Kallu Kushwaha

Respondent :- State Of U.P. & Others

Petitioner Counsel :- B.R.J. Pandey

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Sunil Ambwani,J.

Hon'ble Ran Vijai Singh,J.

As prayed, put up tomorrow i.e. 17.9.2009.

Order Date :- 16.9.2009

PKB

Court No. - 29

Case :- WRIT - C No. - 45723 of 2009

Petitioner :- Kallu Kushwaha

Respondent :- State Of U.P. & Others

Petitioner Counsel :- B.R.J. Pandey

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Ran Vijai Singh, J.

As prayed, put up tomorrow.

Order Date :- 17.9.2009

RKP

Court No. - 29

Case :- WRIT - C No. - 45723 of 2009

Petitioner :- Kallu Kushwaha

Respondent :- State Of U.P. & Others

Petitioner Counsel :- B.R.J. Pandey

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Ran Vijai Singh, J.

Put up on 5.10.2009 before appropriate Bench as unlisted matter.

Order Date :- 18.9.2009

PKB

Court No. - 35

Case :- WRIT - C No. - 45723 of 2009

Petitioner :- Kallu Kushwaha

Respondent :- State Of U.P. & Others

Petitioner Counsel :- B.R.J. Pandey

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Virendra Singh, J.

As prayed put up on 06.10.2009.

Order Date :- 5.10.2009

F.H.

Court No. - 35

Case :- WRIT - C No. - 45723 of 2009

Petitioner :- Kallu Kushwaha

Respondent :- State Of U.P. & Others

Petitioner Counsel :- B.R.J. Pandey

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Virendra Singh, J.

Heard learned counsel for the petitioner. Shri Rajesh Tripathi appears for the respondents.

By this writ petition the petitioner has prayed for quashing the citation dated 19.5.2009 to recover Rs.2,48,257/- towards electricity dues, for which a provisional assessment was served upon the petitioner after a checking, in which it was found that the petitioner is using electrical connection for commercial purposes in his three shops.

Learned counsel for the petitioner submits that the bill of the shops are being paid, and that the petitioner has applied for commercial connection and has deposited the requisite amount on 22.12.2008. He has also challenged the basis and the calculation in the provisional assessment.

Para 8.1 (b) of the U.P. Electricity Supply Code, 2005 provides for detailed procedure of making assessment in case of theft of electricity, which includes unauthorisedly drawing the electricity, or using it for the purposes other than the purposes for which the electricity connection was sanctioned. The relevant provisions of Para 8.1 (b) are quoted as below:-

"8.1 (b) Hearing

(ii) No theft case shall be booked for mere breakage of window glass or old seal of the energy meter. In such cases, if the average monthly consumption pattern for last one year is reasonably uniform as the assessed consumption (monthly), and there is no other prima facie evidence of theft/ UUE found at the consumer premises, no further proceedings shall be taken for theft/ UUE of electricity and the decision shall be communicated to the consumer under proper receipt within 7 working days of the date of inspection, and connection shall be restored through original meter after proper checking/ resealing. The contents of such report commending for dropping the case shall be communicated to the Special Court within a copy to the police station where the FIR was lodged.

(iii) If the Assessing Officer of the licensee suspects that theft of Electricity has taken place (as defined under Section 135 of the Act), he will serve the provisional assessment bill along with show cause notice to the consumer for hearing, giving 15 working days, under proper receipt. The notice shall invite objections in writing from the consumer, if any, against the charges and provisional assessment and require the presence of the consumer to answer to all the charges imposed by the licensee.

(iv) If, after hearing, the authorized officer finds that a case of theft has been established, the assessment shall be done for the energy consumption for past period as per the assessment formula given in Annexure-6.3 on 1.5 (one and a half) times the rates as per applicable normal tariff to the purpose for which the energy is abstracted, used or consumed or wasted or diverted, whichever is higher and demand and collect the same by

including the same in a separate bill. This is in addition to any civil/ criminal proceedings that may be instituted as provided by the Act, and described in clause 8.2.

(v) A copy of the order shall be served to the consumer under proper receipt and in case of refusal to accept the order or in absence of the consumer, shall be served on him under Registered Post/ Speed Post. The Authorized officer may extend the last date of payment or approve the payment to be made in installments on a consideration of the financial position and other conditions of the licensee. The amount, the extended last date and/ or time schedule of payment/ installments should be clearly stated in the speaking order."

In the present case it is not denied that final assessment has not been made nor any findings has been recorded that the provisional assessment was served upon the petitioner and that the petitioner was given an opportunity of hearing in person and object to the assessment. The provisional assessment was sent without following due procedure to be recovered as arrears of land revenue.

The petitioner has given notice through his Advocate on 7.8.2009, which needs to be considered in reply to provisional assessment in accordance with the provisions of the Code.

This writ petition is consequently **disposed of** with directions that the impugned recovery vide citation dated 19.5.2009 shall remain under suspension. Until the respondents make final assessment after considering the petitioner's objections and after giving him notice to appear personally and to raise objections if any. If the petitioner is aggrieved by the final assessment, he may file an appeal under Section 127 of the Indian Electricity Act, 2003.

Order Date :- 7.10.2009
SP/